

# SENATE . . . . . No. 2412

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## The Commonwealth of Massachusetts

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PRESENTED BY:

*Joan B. Lovely*

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*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to commuter rail pedestrian safety.

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PETITION OF:

NAME:

*Joan B. Lovely*

DISTRICT/ADDRESS:

*Second Essex*

# SENATE . . . . . No. 2412

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By Ms. Lovely, a petition (accompanied by bill, Senate, No. 2412) of Joan B. Lovely for legislation relative to commuter rail pedestrian safety. Transportation.

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[SIMILAR MATTER FILED IN PREVIOUS SESSION  
SEE SENATE, NO. 2507 OF 2023-2024.]

## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act relative to commuter rail pedestrian safety.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Section 12 of Chapter 159 of the General Laws, as appearing in the 2022  
2   Official Edition, is hereby amended by inserting after subsection (d) the following:-

3           (e) The safety of persons related to transportation under the jurisdiction of the  
4   department, including commuter rail services.

5           SECTION 2. Notwithstanding any general or special law to the contrary, to ensure the  
6   safety of all individuals in proximity of a commuter rail station in the commonwealth, the  
7   Massachusetts Bay Transportation Authority shall require that all commuter rail station grade  
8   crossings are converted into active crossings containing, at a minimum:

9           (1) four quadrant gates, or gate skirts. Four quadrant gates consist of two exit gates used  
10   in combination with standard entrance gates. The additional gate arms, combined with standard

entrance gates, restrict access to the track crossing area. A gate skirt is defined as a secondary bar or gate marked with identical striping to the primary gate arm. The skirt hangs down from the pedestrian gate, and, in its fully deployed horizontal position, blocks additional area under the arm gate;

(2) signage at the entry point of the crossing to direct pedestrians to the appropriate and identified crossing area;

(3) a signalized visual warning device; and

(4) channelization to provide orientation clues to the designated pathway over the tracks and to direct pedestrians with vision impairments away from unprotected drop-offs along the edges of boarding platforms at stations.

Passive crossings without the required safety measures as enumerated above at a commuter rail station in the commonwealth shall be prohibited. Within 120 days of the passage of this Act, the Massachusetts Bay Transportation Authority shall submit a plan for the upgrades necessary to ensure that all commuter rail stations with pedestrian grade crossings in the commonwealth are in compliance with this Act. Said report shall be sent to the chairperson of the department of public utilities, the secretary of transportation, the secretary of administration and finance, the house and senate chairs of the joint committee on transportation and the chairs of the house and senate committees on ways and means. The Massachusetts Bay Transportation Authority shall also file said plan with the house and senate clerks.